

Witness Examination: The Art & Science of Truth Seeking in Legal Proceedings.

Why witness examination?

1. To search for Truth - Establishing Fact
2. To Test the Evidence (Cross-Examination)
3. To Ensure Due Process & a Fair Trial
4. Record Building

In camera hearing:

1. Contextual Epistemology

→ Truth emerges differently in different contexts.

→ Some truths require protective environment to germinate

→ The "forum" affects the quality & nature of disclosed truth.

This is not merely philosophical assertion but empirically verifiable.

← Memory Distortion, Quantum state collapse, the effect of psychological safety on speech are indeed experimentally verified.

Miranda Fricker's concept of "testimonial injustice"

- Testimonial Injustice occurs when a speaker is given less credibility (how credible the speaker is) than they deserve because of listener's prejudice.

Observation & psychological experiment has verified this.

↑ve correlation
 - power dynamics affect truth-telling.

PRAGMATIC TRUTH THEORY :-

- championed by William James & John Dewey
- TRUTH is not static reality. Truth is about what works, what is useful, and what has practical success in guiding our actions & solving problems.

Ex:

Don't ask if a "hammer is "true".
 Ask if it useful for driving in a nail.

For a pragmatist, a true belief is like a useful tool. Its value is in its practical application.

- A defendant can be found "not guilty" without being absolutely innocent.

"प्रतिवादी को सख्त रूप से दोषी ठहराया जा सकता है।"

reliable as possible.

statement 1: "प्रतिवादीलाई कसूरदार कहना ठीक है।"
 statement 2: "निर्दोष ठहराई।"
 अलग-अलग अर्थों में

These 2 statement carries vast difference in the meaning.

Legal TRUTH = non guilty. (verdict)

This means prosecution failed to meet its burden of proof "beyond a reasonable doubt."

The legal truth works as it resolves the case & prevents the state from jailing the defendant.

Why do we accept this as "true"?

→ Not because it's perfect, but because the process is reliable & fair.

(Rules against hearsay, the right to cross-examination of witness, impartial judge. These all are designed to make the outcome as #

This legal truth works because:

- it provides finality - dispute is over.
- it is legitimate - process were followed, people accept it even if they disagree with the result.
- ~~for~~ it promotes stability - reinforces ROL.

Simple Analogy:

Think of football game. The "true" winner is not necessarily the "absolutely best" team in the world.

The true winner is the team that scored the most point within the rules of game & the time allowed.

- the rules of the game "are the procedural framework"

- the final score is the "pragmatic truth" of who won.

Note:

- Complex Number is Mathematical Truth.
- The symbol " i " where $i^2 = -1$, is simply defined into existence, which became a useful piece of syntax that allows to create a consistent & elegant system.

- The " i " is a rule in the "game" of algebra. Its power lies in its utility not in its correspondence to a tangible physical object.

- Initially, complex numbers were treated as a fiction - they were called

imaginary. ~~as a term of dismissal.~~ They later became were used

as a computational trick to get to real number answer, and were instrumentally useful.

Mathematical Platonism:

- mathematical objects exist independently of human minds.

• For eg: You can point to two apples, but the number "2" is not physical thing. The concept of "twoness" exist beyond any particular pair of objects.

- Platonist argue that complex number system is a real, pre-existing structure that mathematician - discover, not invent.

- The wave ψ^n , which describes the state of a quantum state system, is fundamentally complex valued.

Emp If you try to formulate quantum mechanics using only real numbers, it becomes clumsy & may even be impossible. This suggests that complex number are woven into the fabric of reality.

Non-Pragmatist $\rightarrow$ Are complex no. real?

Pragmatist $\rightarrow$ Do complex number work?

$\rightarrow$ yes. finding roots of polynomial

Wi-Fi relies on Fast Fourier Transform. fluid dynamics, electromagnetism

~lly, Area Vector $\rightarrow$ has utility

Bonus: Bohr Model - "path" / "orbit" (Atom)

QM - orbital - a complex, multidimensional probability cloud described as wave ψ .

Newton - Gravitational field

(invisible, intangible influence that fills space. •

Action at a distance - But

How Sun 150 million km

away reach across empty

space. to pull on the Earth?

$\rightarrow$ To answer gravitational field concept was introduced

Einstein:

His general theory of Relativity, redefined gravity not as a force, but as the curvature of spacetime.

(d 4-D fabric. we cannot touch/see this fabric, it is a geometrical concept)

Before: Vacuum - Completely empty.

Quantum Physics:

After: Vacuum $\rightarrow$ particle & anti-particle pairs constantly "pop" into and out of existence, borrowing energy from the vacuum for a fleeting moment.

Utility:

the electromagnetic force betⁿ 2 electrons is described as the exchange of virtual photons.

- Hawking radiation that cause black holes to evaporate also relies on this concept.

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wave function - Ψ (Philosophical Mystery)

- An abstract mathematical object that exists in a configuration space of all possible states. It represents a superposition of possibilities.

The collapse of the wave function is the process by which this cloud of possibilities turns into a single, definite measurement outcome.

There is no consensus on what this "collapse" actually is or if it's a real physical process.

Color of Quarks - R, B, G.

- Quantum chromodynamics.
- This has nothing to do with actual color.

Statistics Mathematics: Assuming all other variables are held constant.

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Incest:

- Oedipus Rex
- Briupakshya

- provision, principles & practices.
in judicial proceedings.

In camera hearing

- derived from "in chamber" → in private
- the administration of justice fundamentally relies on the principle of open court proceedings balanced against circumstances requiring confidentiality & protection of sensitive interests.

- Open Court Proceedings → default mode of judicial proceedings

☉ This openness serves multiple purposes:

1. Accountability
2. Maintaining public confidence in judicial system
3. Detering arbitrary decision-making

The principle of open justice has deep historical roots evolving from the recognition that justice must not only be done but must be seen to be done.

↳ This is ~~fundamental~~ maxim
encapsulates fundamental importance

- The courtroom is accessible to the general public subject to reasonable restrictions based on space & security.

- Balancing Openness with Order:

- Court maintain dignity through dress ^{for} codes, behavioral expectations & ^{publicity} structured proceedings.

- Public Scrutiny acts as a check on judicial power, ensuring decisions are made according to law rather than personal preference / external pressure.

- Open Hearing promotes consistency in judicial decision-making,
As, the reasoning made by judges will be subject to professional & public review.

- Despite the fundamental importance of open justice, certain limitations are recognized as necessary. Courts may

impose restrictions on publicity in cases involving national security, trade secrets, or the welfare of minors, sexual offences.

• Law & Morality:

- Law's existence is separate from its moral quality. (Separability Thesis)
- A law can be legally valid even if it's morally reprehensible.
- The Pedigree Test (proper enactment) determines validity, not moral content.

Fuller: Hart is not understanding what I mean. I am not talking about moral content of law. I am talking about Morality of law.

Hart argues, we should recognize bad laws as laws to better criticize & reform them rather than denying their legal status through natural law theories.

Morally bankrupt laws are still legally valid if they pass the formal criteria of the legal system & are enacted.

यो नोट खुले कापी - ४ मा हु।

विभागाध्यक्ष
२०७३/७८, नवगौरी नदीया